

Revenue Tribunal Act, 1974

Document type: act

Source: Nepal Law Commission / Ministry of Law, Justice and Parliamentary Affairs

Chunks merged: 7

Revenue Tribunal Act, 2031 (1974)

Royal Seal and Publication Date

2031.4.18 (1974)

Amending Acts

1. Revenue Tribunal (First Amendment) Act, 2033 (1976) 2033.4.10
2. Revenue Tribunal (Second Amendment) Act, 2036 (1979) 2036.6.11
3. Administration of Justice Act, 2048 (1991) 2048.2.16
4. Act to Amend Some Nepal Acts, 2048 (1991) 2049.1.8
5. Act to Amend Some Nepal Acts Relating to Court Management and Administration of Justice, 2058 (2001) 2059.5.27
6. Act to Strengthen the Republic and Amend Some Nepal Laws, 2066 (2009) 2066.10.07
7. Act to Amend Some Nepal Acts, 2072 (2015) 2072.11.13
8. Act to Amend, Consolidate, Adjust and Repeal Some Nepal Laws, 2074 (2017) 2074.6.30
9. Act to Amend Some Nepal Acts Relating to Improving the Economic and Business Environment and Enhancing Investment, 2081 (2024) 2081.2.18

Act No. 3 of the Year 2031 (1974)

An Act Made to Improve the Justice System Relating to Revenue

Preamble: Whereas, it is necessary to make timely improvements in the justice system relating to revenue in order to maintain the convenience and economic interest of the general public,

Now, therefore, His Majesty King Birendra Bir Bikram Shah Dev has enacted this Act on the advice and with the consent of the National Panchayat. 1. Short Title, Extent, and Commencement: (1) This Act may be called the "Revenue Tribunal Act, 2031 (1974)".

(2) This Act shall extend throughout Deleted by the Act to Strengthen the Republic and Amend Some Nepal Laws, 2063 (2006). Nepal.

(3) This Act shall come into force immediately. 2. Definition: Unless the subject or context otherwise requires, in this Act, "Tribunal" means the Revenue Tribunal established under Section 3. 3. Establishment and Constitution of Revenue Tribunal: (1) The Revenue Tribunals established under the Revenue Tribunal Ordinance, 2030 (1973) shall be deemed to have been established under this Act.

(2) The territorial jurisdiction and headquarters of each Tribunal shall be as prescribed by the Government of Nepal by publishing a notification in the Nepal Gazette from time to time. Added by the First Amendment.(3) Each Tribunal shall consist of the following members appointed by the Government of Nepal:-

(a) Law Member,

(b) Revenue Member, and

(c) Accounts Member. Added by the First Amendment.(4) While making appointments pursuant to sub-section (3), any officer possessing the qualifications under Section 4 may be designated as a member of any Tribunal or of more than one Tribunal at the same time. Added by the First Amendment.(5) The Law Member shall be the Chairperson of the Tribunal, and in their absence, the Revenue Member shall preside. 4.

Qualification for Membership of Tribunal: To be appointed as a member of the Tribunal, the following qualifications are required:- Amended by the Act to Amend Some Nepal Acts, 2048 (1991).(a) For Law Member: being a judge of a High Court or possessing the qualification to be one. (b) For Revenue Member: being a graduate and having Amended by the First Amendment.seven years of experience in revenue administration. (c) For Accounts Member: being a graduate and having Amended by the First Amendment.seven years of experience in the field of accounts. Amended by the First Amendment.5. Exercise of Jurisdiction of Tribunal: (1) The jurisdiction of the Tribunal shall be exercised collectively by all three members, and the opinion of the majority shall be deemed to be the decision of the Tribunal. (2) Notwithstanding anything contained in sub-section (1), the proceedings and disposal of a case may be conducted in the presence of the Law Member and any one other member. Proceedings other than passing judgment or issuing a final order in a case may be conducted in the presence of any two members other than the Law Member. The Law Member shall not be prevented from conducting proceedings other than passing judgment or issuing a final order in a case in the absence of the other members. (3) In case of lack of unanimity between the two members present during the proceedings or disposal of a case pursuant to sub-section (2), for proceedings, the opinion of the presiding member shall prevail, and for judgment or final order, the matter shall be referred to the member who was previously absent, and the opinion supported by that member shall be deemed to be the opinion of the Tribunal. (4) If, during the proceedings of a case in the presence of three members, there are three different opinions, the opinion of the Chairperson shall prevail. If, during the disposal of a case, there are three different opinions among the three members, or if upon reference to the member previously absent due to lack of unanimity in the presence of two members pursuant to sub-section (3), there are three opinions, Amended by the Administration of Justice Act, 2048 (1991).a referral must be made to the High Court, and the decision made by the Division Bench of that Court shall be final. 6.

Jurisdiction of Tribunal: (1) The jurisdiction of the Tribunal to hear appeals and petitions in revenue-related cases shall be as provided for in this Act and other prevailing Nepal laws. (2) While hearing an appeal pursuant to sub-section (1), the Tribunal shall have the following powers:- (a) to make a final decision in the case, (b) to remand the case to the original adjudicating office or officer for proceedings and disposal on the matter, specifying the points to be determined and setting a reasonable time, while keeping the case pending, (c) to confirm, reverse, or vary the judgment or order made by the original adjudicating office or officer and to pass such proceedings or decisions as such lower office or officer could have passed, (d) to take additional evidence itself or to cause the lower office or officer to take it, and (e) to exercise the same powers as a court has under prevailing Nepal laws, including summoning parties and witnesses, recording statements, examining evidence, requiring documents to be filed, and imposing penalties and punishments. 7. Contempt of Tribunal: The Tribunal may initiate proceedings for its contempt, and upon finding a person guilty of contempt, the Tribunal may punish them with imprisonment for a term up to two months, or a fine up to five hundred rupees, or both. Provided that, if the accused tenders an apology to the satisfaction of the Tribunal, the Tribunal may forgive them or, if a sentence has already been imposed, remit or reduce that sentence. Amended by the Act to Amend Some Nepal Acts, 2048 (1991).8. Appeal Lies to the Supreme Court: An

appeal against a judgment or final order of the Tribunal shall lie to the Supreme Court only if the Supreme Court grants permission to appeal upon finding that the Tribunal's decision is wholly or partially reversed due to a direct legal error on any of the following questions:- (a) a question of jurisdiction, (b) a question of failure to examine evidence that ought to have been examined or examining evidence that ought not to have been examined, or (c) a question of violation of a mandatory procedural law, Added by the Act to Amend Some Nepal Acts Relating to Court Management and Administration of Justice, 2058 (2001). (d) a question relating to a serious legal error. 9.

Deposit and Time Limit Regarding Appeal: Amended by the Second Amendment. (1) Notwithstanding anything contained in the prevailing law, when filing an appeal to the Tribunal or the Amended by the Administration of Justice Act, 2048 (1991). High Court under this Act, no appeal shall lie without depositing or providing Amended by the Act to Amend Some Nepal Acts Relating to Improving the Economic and Business Environment and Enhancing Investment, 2081 (2024). a bank guarantee that may be updated until the conclusion of the case, without deposit or condition, as follows:- (a) In case of tax assessment: fifty percent of the assessed tax amount, and if a penalty is imposed, the penalty amount, and if both are imposed, fifty percent of the assessed tax amount and the penalty amount, in the office designated by the officer making such assessment or imposing the penalty. (b) In case of customs duty or excise duty assessment: the assessed customs duty or excise duty amount, and if a penalty is imposed, the penalty amount, and if both are imposed, both amounts, in the office designated by the officer making such assessment or imposing the penalty. (2) Deleted by the Second Amendment. (3) If the goods or articles seized or confiscated during the pendency of a case are perishable or subject to deterioration and loss of value, they shall be sold by auction according to prevailing Nepal law and the proceeds kept as a deposit, to be dealt with according to the final decision in the case. For vehicles or machinery, the owner may be entrusted with the goods upon taking a deposit of the value, a personal surety, or a cash guarantee. (4) When filing an appeal to the Tribunal under this Act, the appeal must be filed within thirty-five days from the date the decision of the original adjudicating officer was pronounced or notice thereof was served. 10. Repealed by the Act to Amend Some Nepal Acts, 2072 (2015). 11.

Cases Decided Before the Promulgation of the Revenue Tribunal Ordinance, 2030 (1973): According to the Nepal laws prevailing until the day immediately preceding the commencement of the Revenue Tribunal Ordinance, 2030 (1973):- (a) Where a judgment or final order was made by a Zonal Commissioner, Chief District Officer, Tax Officers, or designated officers, which was appealable to the Income and Tax Court, an appeal shall lie to the Regional Court within the time limit prescribed by the prevailing Nepal law. (b) Where a judgment or final order was made by the Head of the Customs Office, Excise Officer, Tax Officers, or designated officers, which was appealable to the Income and Tax Court, Zonal Commissioner, Chief District Officer, or Zonal Court, but which under this Act is a case appealable to the Tribunal, an appeal shall lie to the Tribunal within the time limit prescribed by the prevailing Nepal law. 12. Power to Inspect and Give Directions: The Tribunal may, in relation to cases within its jurisdiction, inspect Customs Offices, Excise Offices, Tax Offices, and other revenue-related offices that originally adjudicate such cases, or may obtain necessary details from them, or may give them directions. 13. Jurisdiction of Land Administrator for Original Proceedings and Disposal: (1) The Land Administrator shall have original jurisdiction for proceedings and disposal of the following cases within their territorial jurisdiction:- (a) Matters relating to land or revenue (tir/o dapot), (b) Matters relating to land revenue (m/ lpot), (c) Matters relating to Jimidar, Talukdar, Patwari, tenure (b h/l), dismissal (barkh/ st), (d) Matters relating to land reclassified as fallow or culturable, (e) Matters relating to current cultivation and related boundary settlements (sandhisarpan), (f) Matters relating to amounts due by virtue of land occupation, (g) Matters relating to recovery of losses from contracts related to

Land Administration Offices, and (h) Other matters relating to Land Administration Offices as prescribed by the Government of Nepal by publishing a notification in the Nepal Gazette. Amended by the Act to Amend Some Nepal Acts, 2048 (1991). (2) An appeal against a decision made by the Land Administrator under sub-section (1) shall lie to the Amended by the Administration of Justice Act, 2048 (1991). High Court within thirty-five days. (3) In this section, "Land Administrator" or "Land Administration Office" shall be understood to mean the Head of the Revenue Office (M/I Adda) or the Revenue Office (M/I Adda) respectively, in places where the Land Administration Act, 2024 (1967) is not applicable. 14.

Powers of Adjudicating Office or Officer: The office or officer conducting original proceedings and disposal in cases under Section 13 and cases appealable to the Tribunal shall have the same powers as a court under prevailing Nepal laws, including summoning parties and witnesses, recording statements, examining evidence, requiring documents to be filed, and imposing penalties and punishments. 15. Power to Make Rules: The Government of Nepal may make rules for the purpose of implementing the objectives of this Act, and such rules shall be enforced upon publication in the Nepal Gazette. 16. Power to Remove Difficulties: If any difficulty arises in implementing this Act, the Government of Nepal may, by publishing in the Nepal Gazette, issue necessary orders to remove such difficulty, and any such order shall be deemed to be part of this Act. 17. Repeal and Amendment: (1) The Income and Tax Justice System Act, 2016 (1959) and the Income and Tax Court Rules, 2025 (1968) are hereby repealed. (2) The Acts mentioned in the Schedule are hereby amended as specified in the Schedule. 18. Effect of Expiration of the Revenue Tribunal Ordinance, 2030 (1973): When the Revenue Tribunal Ordinance, 2030 (1973) expires, unless a contrary intention appears, such expiration shall not:- (a) affect anything done or any action taken or any right accrued under that Ordinance, (b) affect any right, privilege, obligation, or liability acquired, accrued, or incurred under that Ordinance, (c) affect any penalty, forfeiture, or punishment incurred under that Ordinance, (d) affect any legal proceedings or remedy in respect of any such right, privilege, obligation, liability, penalty, forfeiture, or punishment, and any such legal proceedings or remedy may be instituted, continued, or enforced, and any such penalty, forfeiture, or punishment may be imposed, as if that Ordinance were still in force. Schedule 1 (Relating to Section 17) S.No. Short Title of Act Amendment 1. Repealed by the Excise Act, 2058 (2001) 2. Deleted by the First Amendment 3. Repealed by the Value Added Tax Act, 2052 (1995) 4. Repealed by the Act to Amend, Consolidate, Adjust and Repeal Some Nepal Laws, 2074 (2017) 5. Deleted by the Act to Strengthen the Republic and Amend Some Nepal Laws, 2066 (2009) 6. Deleted by the Act to Strengthen the Republic and Amend Some Nepal Laws, 2066 (2009) 7. Repealed by the Value Added Tax Act, 2052 (1995) 8. Deleted by the Act to Strengthen the Republic and Amend Some Nepal Laws, 2066 (2009) 9. Repealed by the Act to Amend Some Nepal Acts to Make Conformity with the Constitution of Nepal, 2075 (2018). House and Land Tax Act, 2019 (1962) For Section 9, the following Section 9 is substituted:- 9.

Appeal: An appeal against an order made by a Tax Officer under Section 4, 5, 6 or 7 shall lie to the Revenue Tribunal. 10. Foreign Investment Tax Act, 2019 (1962) For Section 9, the following Section 9 is substituted:- 11. Repealed by the Income Tax Act, 2058 (2001) 12. Deleted by the Act to Strengthen the Republic and Amend Some Nepal Laws, 2066 (2009) 13. Repealed by the Income Tax Act, 2058 (2001) 14. Water Tax Act, 2023 (1966) For Section 11, the following Section 11 is substituted:- 11. Appeal: An appeal against an order of punishment made by the designated officer under Section 10 shall lie to the Revenue Tribunal. 15. Repealed by the Value Added Tax Act, 2052 (1995) Note:- (1) Words transformed according to the Act to Amend Some Nepal Laws, 2063 (2006):- "His Majesty's Government" is substituted for "Government of Nepal". (2) Words transformed by the Administration of Justice Act, 2073 (2016): (a) "Court of Appeal" is substituted for "High Court". (b) "Judge of the Court of Appeal" is substituted for "Judge of the High Court".